

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                     |                               |                                                                                                                                                                                                                       |
|---------------------------------------------------|-------------------------------------|-------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Samuel Ross                      | Team:<br>Squad #01                  | CCRB Case #:<br>201505442     | <input checked="" type="checkbox"/> Force <input type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input checked="" type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input type="checkbox"/> Injury |
| Incident Date(s)<br>Thursday, 04/09/2015 1:19 PM  | Location of Incident:<br>§ 87(2)(b) | 18 Mo. SOL<br>10/9/2016       | Precinct:<br>23                                                                                                                                                                                                       |
| Date/Time CV Reported<br>Thu, 07/02/2015 10:31 AM | CV Reported At:<br>CCRB             | How CV Reported:<br>In-person | Date/Time Received at CCRB<br>Thu, 07/02/2015 10:31 AM                                                                                                                                                                |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |
|                    |      |              |

| Witness(es) | Home Address |
|-------------|--------------|
|             |              |
|             |              |

| Subject Officer(s)     | Shield | TaxID  | Command |
|------------------------|--------|--------|---------|
| 1. SGT Brian Farrell   | 01056  | 925260 | WARRSEC |
| 2. SGT Christophe Daly | 04728  | 922204 | WARRSEC |

| Witness Officer(s)         | Shield No | Tax No | Cmd Name |
|----------------------------|-----------|--------|----------|
| 1. SGT Jason Cira          | 2509      | 941676 | WARRSEC  |
| 2. LT John Hawthorne       | 00000     | 919161 | WARRSEC  |
| 3. DT2 Monserrate Badillo  | 05090     | 900766 | WARRSEC  |
| 4. DT3 Howard Petersen     | 05671     | 902198 | WARRSEC  |
| 5. DT3 David Gonzalez      | 2212      | 932728 | WARRSEC  |
| 6. LT James McGarry        | 00000     | 919387 | 023 DET  |
| 7. CPT Christophe Flanagan | 00000     | 920288 | DB FCTF  |
| 8. Officers                |           |        |          |

| Officer(s)              | Allegation                                                                                | Investigator Recommendation |
|-------------------------|-------------------------------------------------------------------------------------------|-----------------------------|
| A . SGT Christophe Daly | Abuse: Sgt. Christopher Daly threatened to damage § 87(2)(b)'s property.                  | A . Unsubstantiated         |
| B . SGT Christophe Daly | Abuse: Sgt. Christopher Daly threatened to notify Administration for Children's Services. | B . Unsubstantiated         |
| C . SGT Christophe Daly | Abuse: Sgt. Christopher Daly entered and searched § 87(2)(b)                              | C . Substantiated           |
| D . SGT Christophe Daly | Abuse: Sgt. Christopher Daly failed to show an arrest warrant to § 87(2)(b)               | D . Substantiated           |
| E . SGT Christophe Daly | Abuse: Sgt. Christopher Daly threatened to arrest § 87(2)(b)                              | E . Substantiated           |
| F . SGT Christophe Daly | Force: Sgt. Christopher Daly used physical force against § 87(2)(b)                       | F . Unfounded               |
| G . SGT Christophe Daly | Force: Sgt. Christopher Daly used physical force against Latisha § 87(2)(b)               | G . Unfounded               |
| H . SGT Christophe Daly | Abuse: Sgt. Christopher Daly refused to provide his name and shield number to § 87(2)(b)  | H . Unfounded               |

| Officer(s)           | Allegation | Investigator Recommendation |
|----------------------|------------|-----------------------------|
| § 87(4-b) § 87(2)(g) |            |                             |

## Case Summary

This case was reported on July 2, 2015, nearly three months after the April 9, 2015 incident date. It was further delayed by overdue documents requested from Manhattan Robbery Squad and Manhattan Warrants Squad, § 87(2)(g) [REDACTED]. These overdue documents were delivered thirty-five days late. Additionally, officers from five commands responded to the incident location, and the investigation obtained statements from eight officers.

§ 87(2)(b) [REDACTED] filed this complaint at the CCRB. § 87(2)(b) [REDACTED] who watched a video posted by § 87(2)(b) [REDACTED] on YouTube, wrote a letter of complaint to the Office of the Inspector General, which was received at the CCRB on September 8, 2015. § 87(2)(b) [REDACTED] was not a witness to the incident. There are two cell phone videos associated with this case.

On April 9, 2015, at approximately 9:25 am, PO Jonathan Guach of the Transit Bureau Anti-Terrorism Unit stopped § 87(2)(b) [REDACTED] for alleged fare evasion inside of the 110<sup>th</sup> Street 6-line subway station, located at East 110<sup>th</sup> Street and Lexington Avenue. § 87(2)(b) [REDACTED] fled across the tracks and then allegedly pushed PO Michelle Batista of TB ATU to the ground, dislocating her shoulder. § 87(2)(b) [REDACTED] fled on the street into § 87(2)(b) [REDACTED] a NYCHA building. Unidentified uniformed officers from the 23<sup>rd</sup> Precinct responded to the location and sealed the building.

Subsequently, officers from the Transit Robbery Squad, the 23<sup>rd</sup> Precinct Detective Squad, and the Manhattan Warrants Squad responded to assist in the investigation with the ultimate purpose of locating and apprehending § 87(2)(b) [REDACTED]. Among the responding officers from Manhattan Warrants were Lt. John Hawthorne, Sgt. Christopher Daly, Sgt. Brian Farrell, Det. Jason Cira, Det. Howard Petersen, Det. Monserrate Badillo, and Det. David Gonzalez. Also responding were Capt. Christopher Flanagan of the Financial Crimes Task Force and Lt. James McGarry of the 23<sup>rd</sup> Precinct Detective Squad.

Upon arrival, the Manhattan Warrants officers began a canvass of the building, checking stairwells and hallways for § 87(2)(b) [REDACTED] as well as interviewing civilians for any information regarding § 87(2)(b) [REDACTED] whereabouts. At approximately 1 pm, Det. Cira approached an elderly Hispanic woman in the § 87(2)(b) [REDACTED] floor hallway. Det. Cira showed a photo of § 87(2)(b) [REDACTED] obtained from a previous arrest, to the woman. She looked at the photo, responded in Spanish, and pointed to the doorway of Apartment § 87(2)(b) [REDACTED]. She then departed from the § 87(2)(b) [REDACTED] floor hallway. Det. Cira informed Sgt. Daly of this interaction, prompting an officer from Manhattan Warrants to perform a warrant check for the apartment. The check returned active warrants for § 87(2)(b) [REDACTED] named § 87(2)(b) [REDACTED] whom the officers believed to reside in Apartment § 87(2)(b) [REDACTED]. At the time that the check was complete, Lt. Hawthorne, Sgt. Daly, Det. Cira, Det. Petersen, Det. Badillo, Det. Gonzalez, Captain Flanagan, and Lt. McGarry were all present in the § 87(2)(b) [REDACTED] floor hallway.

Sgt. Daly knocked on the door. § 87(2)(b) [REDACTED] who resided there with her daughters § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] spoke to Sgt. Daly through the closed door, but refused to open it. Sgt. Daly ordered her to open the door, and allegedly threatened to take down the door (**Allegation A**) and to have her children placed in foster care (**Allegation B**) if she failed to comply.

§ 87(2)(b) called 911 and reported Sgt. Daly's alleged threats. She requested to see uniformed officers in her hallway, and two unidentified uniformed officers arrived. § 87(2)(b) then opened the door. Her 911 call was captured in a cell phone video recorded by § 87(2)(b)

After § 87(2)(b) opened the door, Sgt. Daly entered the apartment (**Allegation C**) followed by Det. Cira, Det. Badillo, and Det. Petersen. § 87(2)(b) captured the officers' entry in a second cell phone video. Sgt. Daly failed to advise § 87(2)(b) of the presence of a search warrant for § 87(2)(b) her son (**Allegation D**), and threatened to arrest § 87(2)(b) for obstructing his path further into the apartment (**Allegation E**). Sgt. Daly then allegedly pushed § 87(2)(b) and § 87(2)(b) aside (**Allegations F and G**). The officers searched the apartment (also **Allegation C**) to negative results. During the search, Sgt. Daly allegedly refused to provide his name and shield number to § 87(2)(b) (**Allegation H**).

Upon completion of the search, the officers departed from the § 87(2)(b) floor and continued the investigation. § 87(2)(b) was apprehended at approximately 3:15 pm as he attempted to exit § 87(2)(b). He was charged with felonious assault of a member of the NYPD, transit fraud, resisting arrest, § 87(2)(a) 160.50. Neither § 87(2)(b) nor her daughters were arrested or issued a summons in regards to this incident.

### Mediation, Civil, and Criminal Histories

- § 87(2)(b) filed a notice of claim in regards to this incident on § 87(2)(b) (01. Board Review) but was unable to retain the services of a civil attorney. On December 29, 2015 the undersigned investigator requested any relevant 50H testimony provided in regards to § 87(2)(b)'s notice of claim. As of the writing of this report the Law Department had not responded to the request.
- § 87(2)(b) rejected mediation § 87(2)(b)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

### Civilian and Officer CCRB Histories

- This is the second CCRB complaint filed by § 87(2)(b) § 87(2)(g)
- This is the eighth CCRB complaint filed against Sgt. Daly, who has been a member of the NYPD for seventeen years (03. Board review). In CCRB Case # 200604814, it was determined that Sgt. Daly was responsible for providing faulty information leading to an

unlawful stop, and therefore a stop was both pleaded against him and substantiated. § 87(2)(g)

### Potential Issues

- § 87(2)(b) did not allow the CCRB to obtain statements from § 87(2)(b) or § 87(2)(b) both of whom were minors.
- The investigation was unable to obtain a statement from Det. Badillo, who was on military duty § 87(2)(b)
- The investigation was unable to identify the two uniformed officers who visited the § 87(2)(b) floor hallway in response to § 87(2)(b)'s 911 call. § 87(2)(b) could not describe the officers in detail, and none of the eight officers interviewed for this case identified them. The Event number and corresponding Sprint report report for § 87(2)(b)'s 911 call were located, but they revealed only that § 87(2)(b) who went over the air as the Commanding Officer of the 23<sup>rd</sup> Precinct stated that officers were conducting a warrant check at § 87(2)(b). Sgt. Marc Newelt, the 23<sup>rd</sup> Precinct ICO, informed the undersigned investigator via a phone call believed that the Commanding Officer referred to was likely Lt. McGarry. However, Lt. McGarry testified that he never learned of § 87(2)(b)'s 911 call.
- The investigation was unable to identify or obtain a statement from the elderly Hispanic woman with whom Det. Cira spoke in the § 87(2)(b) floor hallway. § 87(2)(b) stated that she had not spoken with any of her neighbors about the incident and had not learned if any of her neighbors ever interacted with the officers involved. As discussed below, none of the eight officers interviewed for this case learned the unidentified woman's name or obtained contact information for her. Mgr. Almeyda performed a Lexis Nexis search for residents of the § 87(2)(b) floor of § 87(2)(b). Inv. Mulinelli, a Spanish speaker, attempted to contact those individuals on November 6, 2015. He left voicemail messages in Spanish and in English at three numbers and contacted § 87(2)(b) who had no knowledge of the incident. On November 13, 2015 he contacted a second individual, who also did not have any knowledge of the incident, and left voicemail messages in Spanish and in English at the two remaining phone numbers. As of the writing of this report the unidentified witness has not attempted to contact the undersigned investigator or Inv. Mulinelli.

### Pleading

As mentioned above, Sgt. Daly entered the apartment with Det. Cira, Det. Badillo, and Det. Petersen. Further, Captain Flanagan, Lt. McGarry, and Lt. Hawthorne were present in the hallway at the time of the entry. § 87(2)(g)

§ 87(2)(b) In entering the apartment Det. Cira, Det. Badillo, and Det. Petersen followed the orders of Sgt. Daly, their direct supervisor. § 87(2)(g)

§ 87(2)(b) While both Sgt. Daly and Lt. Hawthorne spoke directly with Det. Cira about the above-mentioned interaction between Det. Cira and the elderly Hispanic woman—which initiated the investigation into § 87(2)(b) Sgt. Daly was Det. Cira's direct supervisor and

was the only supervisor who entered the apartment. § 87(2)(g)

### **Findings and Recommendations**

#### **Allegation A—Abuse of Authority: Sgt. Christopher Daly threatened to damage § 87(2)(b)'s property.**

§ 87(2)(b) (04. Board Review) testified that she was first alerted to the presence of the officers outside her apartment door by § 87(2)(b) who told her that someone was turning the knob. § 87(2)(b) went to the door and heard a voice she later determined to be Sgt. Daly's say, "NYPD. Open the door." When § 87(2)(b) asked for a reason, Sgt. Daly said that he and the other officers were looking for someone. § 87(2)(b) looked through the peephole and saw Sgt. Daly standing in front of the door with Det. Cira and Det. Petersen. She said that whoever the officers were looking for was not in her apartment. Sgt. Daly responded that if § 87(2)(b) did not open the door, he would take the door down. After this conversation, § 87(2)(b) called 911.

Video 1 (1m24s):



201505442\_20150702\_1544\_DM.mp4

This video of § 87(2)(b)'s 911 call did not capture the alleged threats. However, it demonstrated that § 87(2)(b) complained at the time of the incident that an officer had threatened to take down her door. The details of § 87(2)(b)'s 911 call, including the alleged threat of property damage, were confirmed by the 911 audio (05. Board Review) and corresponding Sprint report (06. Board Review), mentioned above.

Sgt. Daly (07. Board Review) testified that he did not recall whether he ever threatened to take down § 87(2)(b)'s door. Det. Cira (08. Board Review) denied that Sgt. Daly or any officer ever did so. Captain Flanagan (09. Board Review), Lt. McGarry (10. Board Review), Lt. Hawthorne (11. Board Review), Det. Petersen (12. Board Review), and Det. Gonzalez (13. Board Review) all testified that they never witnessed Sgt. Daly or any other officer threaten to take down § 87(2)(b)'s door.

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

therefore it is recommended that **Allegation A** be closed as **unsubstantiated**.

**Allegation B—Abuse of Authority: Sgt. Christopher Daly threatened to notify the Administration for Children’s Services.**

§ 87(2)(b) testified that before she called 911, Sgt. Daly also stated that if she refused to open the door, he would put her children in foster care.

This alleged threat was not captured on video, and neither Video 1 nor the Sprint report for § 87(2)(b) s 911 call demonstrate that § 87(2)(b) complained of this alleged threat at the time of the incident.

Sgt. Daly and Det. Cira both denied that Sgt. Daly or any other officer ever threatened to notify the Administration for Children’s Services. Captain Flanagan, Lt. McGarry, Lt. Hawthorne, Det. Petersen, and Det. Gonzalez all testified that they never witnessed Sgt. Daly or any other officer threaten to notify the Administration for Children’s Services. It is undisputed that none of these officers ever witnessed any condition inside of § 87(2)(b) which would have warranted notifying the Administration for Children’s Services, and the Administration for Children’s Services was not called.

§ 87(2)(g)

therefore it is recommended that **Allegation B** be closed as **unsubstantiated**.

**Allegation C—Abuse of Authority: Sgt. Christopher Daly entered and searched** § 87(2)(b)

It is undisputed that Sgt. Daly, Det. Cira, Det. Badillo, and Det. Petersen entered § 87(2)(b) and that Lt. Hawthorne, Lt. McGarry, Captain Flanagan, and Det. Gonzalez were in the hallway outside of the apartment when the entry took place.

Det. Cira testified that upon arrival at § 87(2)(b) he began a vertical patrol, canvassing the building for § 87(2)(b) or information regarding his whereabouts. Det. Cira had with him a photo of § 87(2)(b). Det. Cira did not remember what sort of photo it was—whether printed or on a digital screen, or whether an arrest photo, DMV photo, an image obtained that day from surveillance footage, or otherwise. However, Sgt. Daly provided to the investigation a previous arrest photo of § 87(2)(b) (14. Board Review), which he stated was the photo that he and the other Manhattan Warrants officers used on the date of the incident. That photo pictured only § 87(2)(b) face. Det. Cira testified that during the canvass, he and the other members of his command often separated and rejoined. Therefore, he was not certain if any other officer was with him when he reached the § 87(2)(b) floor. There, in the hallway, he observed an elderly Hispanic woman standing near the elevators. She was alone and no other civilians were present. There were no open doors in the hallway. Det. Cira approached the unidentified woman and showed her the photo of § 87(2)(b). He said, “Have you seen this person?” He did not verbally

identify himself as a police officer but believed he was wearing his shield on a chain around his neck or clipped to his waist. The woman responded to Det. Cira in Spanish and simultaneously pointed to the doorway of § 87(2)(b). The woman was standing approximately five to ten feet from the doorway. She and Det. Cira had a clear line of sight to the doorway, and there were no other doorways near the door to § 87(2)(b). Det. Cira did not speak Spanish and did not understand what the woman said. Det. Cira believed the woman understood what he was saying because as soon as he showed her the photo she pointed to the door. The woman never spoke in English to Det. Cira and never said anything that Det. Cira was able to understand. Det. Cira never asked any other officer to help translate, but stated that Det. Badillo, Det. Garcia, and Det. Gonzalez spoke Spanish. After pointing at the doorway of § 87(2)(b) the unidentified woman entered an elevator, and Det. Cira did not see her again. He did not ask for the woman's name or contact information and was not sure if any officer ever looked for her afterward to try to obtain that information. Det. Cira did not remember if any other officers were present during this interaction.

Sgt. Daly, Lt. McGarry Det. Petersen, and Det. Gonzalez testified that they were not present for and did not witness this interaction. Captain Flanagan and Lt. Hawthorne, however, both testified that they witnessed Det. Cira speak with an unidentified elderly Hispanic individual in the § 87(2)(b) floor hallway. Lt. Hawthorne stated that Det. Cira spoke with the individual, who then pointed to the door of § 87(2)(b). Lt. Hawthorne was standing approximately ten feet away from them and was unable to hear their conversation, which lasted less than one minute. The unidentified woman then walked away from Det. Cira toward the elevator, passing Lt. Hawthorne on her way. As she passed Lt. Hawthorne she said, "Bad people." She had a thick Spanish accent. The woman entered the elevator and Lt. Hawthorne did not see her again after the doors closed. Captain Flanagan stated that a Manhattan Warrants officer approached an unidentified, elderly Hispanic individual and showed that individual a photo of § 87(2)(b). The officer and the unidentified individual had a short conversation but Captain Flanagan did not remember what was said between them and did not remember if he heard the conversation how far away he was stood. He did not remember if they spoke in English or another language, did not remember if the unidentified individual spoke in Spanish, and did not remember if there was any language barrier whatsoever. After being shown a photo of § 87(2)(b) the unidentified individual pointed to the door of § 87(2)(b).

Det. Cira testified further that after the unidentified individual departed from the § 87(2)(b) floor hallway, he saw Sgt. Daly on the § 87(2)(b) floor. He told Sgt. Daly that § 87(2)(b) had told him that § 87(2)(b) was inside of § 87(2)(b). Det. Cira did not recall if he told Sgt. Daly about the language barrier between himself and the unidentified individual. He also did not recall if any other officers were present when he told Sgt. Daly about how he received this information regarding the whereabouts of the § 87(2)(b).

Sgt. Daly testified that during the course of the canvass, he received a phone call asking him to come to the § 87(2)(b) floor. The phone call did not provide any further information and he did not remember who called him. Sgt. Daly responded to the § 87(2)(b) floor immediately, and saw Det. Cira and Lt. Hawthorne in the hallway. No civilians were present. Det. Cira told Sgt. Daly that he had shown the photo of § 87(2)(b) to § 87(2)(b) in the § 87(2)(b) floor hallway, and that the individual had subsequently pointed to the door of § 87(2)(b). This, Sgt. Daly testified,

indicated to Det. Cira that the individual believed § 87(2)(b) to be inside of the apartment. Although Lt. Hawthorne was on the § 87(2)(b) floor at that time, Sgt. Daly did not know if Lt. Hawthorne was nearby when this conversation between himself and Det. Cira took place. Sgt. Daly did not know if Lt. Hawthorne spoke with Det. Cira about the conversation between Det. Cira and the unidentified individual. Det. Cira never informed Sgt. Daly if any other officer witnessed the interaction, and Sgt. Daly did not ask. Sgt. Daly did not know what Det. Cira said to the woman when he showed her the photo and did not remember if Det. Cira told him. Sgt. Daly did not remember who was present during his conversation with Det. Cira. Sgt. Daly did not ask Det. Cira or learn where the woman had gone, and did not ask Det. Cira or learn if he had obtained or recorded her name or any other contact information for her. Sgt. Daly never asked Det. Cira if he knew where the woman was at that time. Sgt. Daly learned that there was a language barrier between Det. Cira and the individual but he did not remember if he learned about the language barrier during this initial conversation with Det. Cira or later. Sgt. Daly did not know if Lt. Hawthorne ever learned of the language barrier at any point. Sgt. Daly also did not know specifically what Det. Cira meant by “language barrier.” He did not recall if any officer told him that the woman spoke English. He did not recall Det. Cira or any other officer ever informing him that the woman spoke Spanish. Det. Badillo, Det. Garcia, and Det. Gonzalez speak Spanish, but Det. Cira did not. Sgt. Daly did not know if Det. Cira ever discussed the conversation he had with the woman with Det. Gonzalez or Det. Badillo. Det. Cira never informed Sgt. Daly that he made any effort to find a Spanish speaker to speak with the woman. When Det. Cira told Sgt. Daly about the language barrier, Sgt. Daly did not make any inquiry about the details of that language barrier. Sgt. Daly never encountered the woman who pointed at the door at any point. Other than Det. Cira’s description of his interaction with the unidentified woman, Sgt. Daly did not receive any further information that § 87(2)(b) was inside § 87(2)(b) [REDACTED]

Lt. Hawthorne testified that after the unidentified woman departed from the § 87(2)(b) floor, he approached Det. Cira and asked what she had said. Det. Cira told Lt. Hawthorne that he had shown the woman a photo of the perp and that she had then pointed at the door of § 87(2)(b) [REDACTED]. Lt. Hawthorne did not remember seeing Det. Cira showing a photo to the woman. Det. Cira did not tell Lt. Hawthorne anything else about the interaction and Lt. Hawthorne did not remember if he asked for any further information whatsoever. He did not remember if he ever learned that there was a language barrier between Det. Cira and the woman and did not speak with any other officer about any such a language barrier. Lt. Hawthorne never learned if Det. Cira had obtained the woman’s name or contact information and did not inquire. Lt. Hawthorne stated that they did not need such information. Det. Cira did not tell Lt. Hawthorne where the woman was going, Lt. Hawthorne did not learn if Det. Cira asked where she was going, and Lt. Hawthorne did not inquire. Lt. Hawthorne did not take any further steps to verify why the woman pointed to the door or why she might believe § 87(2)(b) to be inside § 87(2)(b) [REDACTED]. Lt. Hawthorne did not know if Det. Cira discussed the description of the perp with the woman and did not inquire. He never learned that Sgt. Daly or any other officer took any further steps to verify the information provided by the unidentified woman and did not instruct Sgt. Daly or any officer to take any such further verification steps. Lt. Hawthorne did not remember if, at that time, other than the woman’s pointing at the door, he had any further information suggesting that the perp was inside § 87(2)(b) [REDACTED].

Captain Flanagan did not remember if the unidentified individual provided a name. He did not remember if any supervisor from Manhattan Warrants asked the officer who showed the photo about the conversation that took place. After the unidentified individual boarded the elevator, no officers asked where the individual was going. Captain Flanagan did not take any steps to verify the information provided by the unidentified individual, and he did remember if any officer ever took any verification steps. He did not remember he ever asked any officer if any such verification steps had been taken.

Lt. McGarry, Det. Petersen, and Det. Gonzalez testified that they never learned about any such interaction between Det. Cira and a Spanish-speaking individual, and never learned what led Sgt. Daly or any other supervisor to believe that § 87(2)(b) might be inside § 87(2)(b).

After Det. Cira informed Sgt. Daly and Lt. Hawthorne of his interaction with the unidentified Hispanic woman, which Det. Cira, Sgt. Daly, and Lt. Hawthorne testified led them to believe that § 87(2)(b) might be inside § 87(2)(b) an officer from Manhattan Warrants performed a warrant check for the apartment. Neither Sgt. Daly nor Lt. Hawthorne specifically recalled ordering the check to be performed or who performed it. Det. Cira, Det. Petersen, and Det. Gonzalez testified that they did not perform the check. Lt. McGarry and Lt. Flanagan both testified that they had no knowledge of who ordered the check or who performed it. All of these officers testified that they had no knowledge of any documentation of the check being performed or of any documentation of the results. As mentioned above, the radio communications associated with the incident and the Sprint report for § 87(2)(b)'s 911 call reveal that an officer stated over the radio that a warrant check was being conducted "at the location." However, it is unclear whether that statement referred specifically to § 87(2)(b) or to § 87(2)(b) in its entirety, and further, all of the officers testified that they had no knowledge of who made that statement. The investigation's requests for the records of any ITSD checks performed for § 87(2)(b), § 87(2)(b) or for § 87(2)(b) on the incident date both returned negative results (15. and 16. Board Review).

Lt. Hawthorne testified that there were multiple ways a check could be performed, and he did not remember which type was performed in this case. He believed that complaint reports, arrest reports, and domestic incident reports showed that § 87(2)(b) lived at § 87(2)(b) but did not remember how recently such documentation placed § 87(2)(b), § 87(2)(b) at § 87(2)(b) and had not personally seen any such information. Sgt. Daly stated that a warrant check for the apartment would have consisted of two parts: first, a check for individuals associated with the address and second, a check for active warrants for those individuals. In order to determine which individuals were associated with the apartment, Sgt. Daly believed that whoever performed the check would have looked at complaint reports, arrest reports, and domestic incident reports associated with the address. Lt. Hawthorne and Sgt. Daly both testified that the warrant check was positive: there was an active warrant for § 87(2)(b) named § 87(2)(b), § 87(2)(b) who was associated with § 87(2)(b) at § 87(2)(b). Captain Flanagan and Lt. McGarry both testified that they were told that there was a warrant for the apartment but were not informed as to who the warrant was for. Further, neither Captain Flanagan nor Lt. McGarry questioned the legitimacy of the warrant, as locating warrants for wanted persons was the expertise of the Manhattan Warrants Squad. Det. Cira did not testify that a warrant check was performed or that a warrant for § 87(2)(b) who resided in § 87(2)(b) was located. Det. Gonzalez and Det.

Petersen stated that they had no knowledge of a warrant check being performed or of any warrant associated with any individual who lived in § 87(2)(b) § 87(2)(b). Sgt. Daly and Lt. Hawthorne both testified that other than the result of the warrant check, they did not have any information placing § 87(2)(b) § 87(2)(b) inside of § 87(2)(b) at that time.

As mentioned, Sgt. Daly did not know what specific documentation indicated that § 87(2)(b) § 87(2)(b) lived at § 87(2)(b) § 87(2)(b). He testified that he had, at some point prior to his CCRB interview, seen a copy of a domestic incident report involving § 87(2)(b) § 87(2)(b) at § 87(2)(b) § 87(2)(b). According to Sgt. Daly, that report was from 2008, and Sgt. Daly did not bring that report with him to his CCRB interview. Sgt. Daly was not aware of any documentation that placed § 87(2)(b) § 87(2)(b) at § 87(2)(b) § 87(2)(b) more recently than 2008.

In furtherance of this investigation, the undersigned investigator performed a thorough check for § 87(2)(b) § 87(2)(b)'s relationship to § 87(2)(b) § 87(2)(b) at § 87(2)(b) § 87(2)(b). A search for all warrants for § 87(2)(b) § 87(2)(b) revealed that § 87(2)(b) § 87(2)(b) did indeed have four active warrants: the two oldest, issued on § 87(2)(b) § 87(2)(b) 2011 and § 87(2)(b) § 87(2)(b) respectively, listed the address § 87(2)(b) § 87(2)(b) in the Bronx, NY; the next most recent, issued on § 87(2)(b) § 87(2)(b) 2012, listed the address § 87(2)(b) § 87(2)(b) in New York, NY; the most recent, issued on § 87(2)(b) § 87(2)(b) 2013, listed the address § 87(2)(b) § 87(2)(b) in Brooklyn, NY (17. Board review). There was also a closed warrant, cancelled on § 87(2)(b) § 87(2)(b) 2008, which listed the address § 87(2)(b) § 87(2)(b) (also 17. Board Review). A log of all of § 87(2)(b) § 87(2)(b)'s arrests (18. Board review) and the collection of his arrest reports (the most recent of which was from April of 2012), revealed that none of these reports listed the address § 87(2)(b) § 87(2)(b). A check for complaint reports which listed § 87(2)(b) § 87(2)(b) as either victim or perpetrator in association with any incident occurring within the confines of the 23<sup>rd</sup> Precinct between 2011 and 2015 was negative (19. Board Review). A check for any domestic incident reports involving § 87(2)(b) § 87(2)(b) was also negative; the only domestic incident report located was filed by § 87(2)(b) § 87(2)(b) against one of her daughters, and did not mention § 87(2)(b) § 87(2)(b) whatsoever (20. Board Review). Mgr. Almeyda performed a Lexis Nexis search for § 87(2)(b) § 87(2)(b) which listed his address as § 87(2)(b) § 87(2)(b) from May 2009 to September 2010. Mgr. Almeyda also performed a Clear search, which listed § 87(2)(b) § 87(2)(b)'s address as § 87(2)(b) § 87(2)(b) from January 2006 to February 2015.

During his CCRB interview, Sgt. Daly was shown the log of all warrants for § 87(2)(b) § 87(2)(b) which showed that there was no active warrant listing § 87(2)(b) § 87(2)(b). Sgt. Daly testified that an officer told him, "We have a warrant for the apartment," and that he was not informed that the warrant was not for § 87(2)(b) § 87(2)(b). Lt. Hawthorne testified that he believed the result of the warrant check gave the officers probable cause to enter § 87(2)(b) § 87(2)(b).

It is undisputed that after receiving the results of the warrant check, Sgt. Daly knocked on the door of § 87(2)(b) § 87(2)(b) and told § 87(2)(b) § 87(2)(b) to open the door. § 87(2)(b) § 87(2)(b) refused and asked to see uniformed police officers. When two unidentified uniformed officers appeared in the hallway, § 87(2)(b) § 87(2)(b) opened the door. The following events, including the entry in its entirety is captured in a cell phone video. Video 2 (5m30s):



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As demonstrated in the video, after § 87(2)(b) opened the door, Sgt. Daly explained to § 87(2)(b) that the officers wanted to check her apartment for a certain individual. He also showed § 87(2)(b) a photo of § 87(2)(b) and told § 87(2)(b) that the officers had been told by “someone” that § 87(2)(b) was inside of her apartment. Sgt. Daly also stated to § 87(2)(b) that he did not need a warrant for the entry of the apartment because he was “pursuing a felon who [was] fleeing” from them. Sgt. Daly then stepped away from the threshold of the door, returned to the doorway fourteen seconds later, and entered the apartment. § 87(2)(b) protested loudly that the officers did not have a warrant to enter, but Sgt. Daly stepped through the threshold nonetheless. Det. Cira, Det. Badillo, and Det. Petersen followed.

Sgt. Daly testified that during the fourteen seconds he was away from the door, he approached Lt. Hawthorne and Captain Flanagan and asked, “Do you think he’s in there?” Sgt. Daly stated that when he said “he,” he was referring to § 87(2)(b) § 87(2)(b) but he did not know if he specified the identity of the “he” to Lt. Hawthorne and Captain Flanagan. He did not use either § 87(2)(b) or § 87(2)(b) name. He did not know at the time of his CCRB interview whether Lt. Hawthorne and Captain Flanagan were aware of the warrant for § 87(2)(b) § 87(2)(b) when he asked, “Do you think he’s in there?” He believed, however, that they both believed there was a warrant for the apartment. According to Sgt. Daly, Lt. Hawthorne and Captain Flanagan said that they thought “he” was inside. Sgt. Daly agreed, based on § 87(2)(b) s behavior, which he took to mean that something was wrong inside the apartment or that she was attempting to hide something. Sgt. Daly did not ask them anything else, and neither Lt. Hawthorne nor Captain Flanagan said anything further or gave any instruction.

Lt. Hawthorne testified that he did not remember Sgt. Daly leaving the doorway after speaking with § 87(2)(b) Sgt. Daly consulting with him or Captain Flanagan, or giving instruction to Sgt. Daly regarding how to proceed. Lt. McGarry testified that he did not give any instruction and did not witness Sgt. Daly consult with Lt. Hawthorne or Captain Flanagan. Det. Petersen did not testify as to Sgt. Daly’s leaving the doorway or consulting any supervisor. Det. Gonzalez did not remember if Sgt. Daly ever stepped out of the doorway or consulted with any supervisor. Det. Cira testified that Sgt. Daly left the doorway, approached the other supervisors in the hallway, had a conversation with them that Det. Cira could not hear, and returned to the doorway. Captain Flanagan testified that while Sgt. Daly spoke with § 87(2)(b) Lt. Hawthorne asked him if he believed Manhattan Warrants officers should enter the apartment. Captain Flanagan stated that they should, as he believed the officers had information that § 87(2)(b) § 87(2)(b) was inside the apartment. Additionally, he believed the officers had located a valid warrant for the apartment.

§ 87(2)(g)  
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§ 87(2)(g)

According to *People v. McBride*, 14 N.Y.3d 440 (2010), officers may make warrantless entry into a home given the existence of exigent circumstances. McBride devised six factors to consider when evaluating for exigent circumstances: 1) the gravity of violent nature of the offense with which the suspect is to be charged; 2) whether the suspect is reasonably believed to be armed; 3) a clear showing of probable cause to believe that the suspect committed the crime; 4) strong reason to believe that the suspect is in the premises being entered; 5) a likelihood that the suspect will escape if not swiftly apprehended; and 6) the peaceful circumstances of the entry (21. Board Review).

§ 87(2)(g)

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As noted in *People v. Cabral*, 560 N.Y.S.2d 71 (1990) (22. Board Review), a police officer armed with an arrest warrant may enter any premises in which he reasonably believes the suspect to be present at the time the arrest warrant is executed. However, according to *Cabral*, an arrest warrant bearing an address at which the suspect was known or documented to have resided no more recently than six and one half months prior to the warrant's execution was no longer valid for the address. This decision was rendered on the basis that a suspect's having resided at a given location at some point did not establish that location indefinitely as the suspect's residence.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **substantiated**.

**Allegation D—Abuse of Authority: Sgt. Christopher Daly failed to show an arrest warrant to § 87(2)(b)**

As demonstrated in Video 2 above, § 87(2)(b) asked Sgt. Daly “where is your warrant” multiple times, both before and after he entered the apartment. Sgt. Daly told § 87(2)(b) that he did not need a warrant, as he and the officers with him were pursuing a fleeing felon.

As mentioned above, Sgt. Daly testified that he entered § 87(2)(b)'s apartment in order to apprehend § 87(2)(b) § 87(2)(b) but the investigation determined by a preponderance of the evidence that the officer in fact entered in order to locate and apprehend § 87(2)(b) § 87(2)(b). The investigation determined that Manhattan Warrants officers performed a warrant check in order to locate any warrant, whether related or unrelated to § 87(2)(b) § 87(2)(b) which would provide them with a legal pretext for entering § 87(2)(b)'s apartment. The balance of testimony supported this conclusion. As the video demonstrates, Sgt. Daly did not advise § 87(2)(b) of the arrest warrant located for her son, § 87(2)(b) § 87(2)(b) or of the purpose for which he testified he entered the apartment—to apprehend § 87(2)(b). Sgt. Daly testified that he did not notify § 87(2)(b) of the warrant for § 87(2)(b) § 87(2)(b) because she was already highly agitated and he believed that this knowledge would further exacerbate the situation.

NYPD Patrol Guide Procedure 208-42 (23. Board review) requires that when armed with an arrest warrant, an officer must announce his or her authority and purpose if the premises being entered is involved and there is reasonable cause to believe the defendant (read: suspect) is inside, except if giving such information may endanger the life of the officer or another person, result in the defendant attempting to escape, or result in material evidence being destroyed, damaged, or hidden.

§ 87(2)(g)

§ 87(2)(g)

therefore it is recommended that **Allegation D** be closed as **substantiated**.

**Allegation E—Abuse of Authority: Sgt. Christopher Daly threatened to arrest** § 87(2)(b)

§ 87(2)(b) alleged that when she attempted to block Sgt. Daly's path through the hallway inside of her apartment, Sgt. Daly threatened to arrest her. As demonstrated in Video 2 above, when Sgt. Daly stepped through the threshold of § 87(2)(b)'s apartment, § 87(2)(b) moved to obstruct his path further into the apartment. While Sgt. Daly testified that he was uncertain whether he said "You don't want to get arrested" or "You're gonna get arrested" before commanding § 87(2)(b) to step back, the video demonstrated that Sgt. Daly said, "You're gonna get arrested. Now step back." Further, Sgt. Daly stated that he believed § 87(2)(b) was guilty of Obstructing Governmental Administration for obstructing his path into the apartment.

New York State Penal Law Code 195.05 defines Obstructing Governmental Administration as the intentional obstruction, impairment, or perversion of law or other governmental function (24. Board review).

According to *Police Department v. Grossman*, OATH Index No. 2382/00R (25. Board review), an officer may not legally threaten to arrest an individual for Obstructing Governmental Administration if that individual is, in fact, not guilty of said offense.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **substantiated**.

**Allegation F—Abuse of Authority: Sgt. Christopher Daly used physical force against** § 87(2)(b)

**Allegation G—Abuse of Authority: Sgt. Christopher Daly used physical force against**

§ 87(2)(b)

§ 87(2)(b) testified that when Sgt. Daly entered the apartment and she positioned herself to obstruct his path, he pushed her aside with his shoulder. She stated that a second officer then pushed her daughter, § 87(2)(b) aside with his shoulder. The video demonstrated, however, that only Sgt. Daly ever made physical contact with either § 87(2)(b) or § 87(2)(b). Further, as the video demonstrates, the manner of contact made between Sgt. Daly and § 87(2)(b) and subsequently between Sgt. Daly and § 87(2)(b) did not constitute a push in either case. In fact, it was § 87(2)(b) who ultimately pushed § 87(2)(b) aside. Therefore, it is recommended that **Allegations F and G** be closed as **unfounded**.

**Allegation H—Abuse of Authority: Sgt. Christopher Daly refused to provide his name and shield number to § 87(2)(b)**

§ 87(2)(b) testified that when Sgt. Daly entered the apartment she could not see his shield and asked him for his name. He said he would give it to her later. § 87(2)(b) also stated that as the officers were exiting her apartment, she requested Sgt. Daly's name and shield number, but he departed without providing it.

The video demonstrated that from the moment the door was opened, Sgt. Daly's shield was visible hanging from a chain around his neck. Further, § 87(2)(b) did not request Sgt. Daly's name when he initially entered the apartment. She also did not request his name or shield number as Sgt. Daly was leaving the apartment. In fact, Sgt. Daly told § 87(2)(b) that he would give her his name and shield number so that she could sue. He then held up his shield for her to see. It is therefore recommended that **Allegation H** be closed as **unfounded**.

§ 87(4-b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

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Squad: 1

Investigator: \_\_\_\_\_  
Signature Print Date

Pod Leader: \_\_\_\_\_  
Title/Signature Print Date

Attorney: \_\_\_\_\_  
Title/Signature                      Print                      Date